

24CV04497 Juliette Lee vs Marla Daily et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-07-31

Motion: Motion: Bifurcation

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Tentative Ruling: Juliette Lee vs Marla Daily et al

Case Number

24CV04497

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 07/31/2026 - 10:00

Nature of Proceedings

Motion: Bifurcation

Tentative Ruling

For all reasons discussed herein, the motion of Defendants to bifurcate trial is denied.

Background:

This action commenced on August 14, 2024, by the filing of the complaint by plaintiff Juliette Lee ("plaintiff") against defendants Marla Daily and Kirk Connally (collectively "defendants") for: (1) Breach of Implied Warranty of Habitability; (2) Nuisance; (3) Negligent Infliction of Emotional Distress; (4) Breach of Express and Implied Covenant of Quiet Enjoyment; (5) Negligent Violation of Statutory Duties; (6) Violation of Business & Professions Code sections 17200 et seq.; and (7) Premises Liability.

Plaintiff alleges that beginning on December 28, 2022, she began living at 590 Holly Ave., Carpinteria (the “Property”). (Compl., ¶ 6.) Defendants were the owners and property managers of the Property. (Compl., ¶ 8.)

The Property suffered from improper ventilation, strong and musty odors, and water intrusion that caused damage to personal property, loss of use of the Property, and severe microbial contamination. (Comp., ¶ 15.) Defendants breached the implied warranty of habitability and failed to provide a safe, decent, and sanitary dwelling by maintaining and allowing several conditions to exist at the Property. (Compl., ¶ 18.)

Instead of fixing the conditions, defendants threatened plaintiff with eviction and to make unfavorable changes to plaintiff’s lease. (Compl., ¶ 19.) On December 28, 2022, plaintiff was stepping out of a shed on the property and did not realize that there were no steps, causing her to fall and sprain her right wrist, ankle, and foot. (Ibid.)

On September 30, 2024, defendants answered the complaint with a general denial and 19 affirmative defenses, including the 19th affirmative defense that plaintiff has released defendants from any claim for injury, damage, or loss.

On July 8, 2026, defendants filed the present motion for an order bifurcating trial to have their 19th affirmative defense tried before any other claim.

On July 13, 2026, as a result of an ex parte application, the Court advanced the hearing on the motion to July 31, 2026. By way of the Court’s Order, plaintiff’s opposition to the motion was due on July 20, 2026. Plaintiff’s counsel was present at the hearing.

On July 27, 2026, plaintiff late-filed opposition to the motion.

Analysis:

Late-Filed Opposition

As noted above, plaintiff late-filed their opposition by seven days. Defendants ask the court to disregard the opposition.

“No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.” (Cal. Rules of Court, rule 3.1300(d).)

“[A] trial court has broad discretion to accept or reject late-filed papers.” (Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262.)

Plaintiff has failed to give any reason, or attempt to establish good cause, for the late filing of the opposition. Further, the opposition is 12 pages long and does not include a table of contents and table of authorities as required by California Rules of Court, rule 3.1113(f). Counsel is reminded that all Rules of Court, and other relevant statutes and case law, must be complied with.

The opposition will not be considered. However, the moving parties must still meet their burden.

Bifurcation

Defendants move under Code of Civil Procedure sections 598 and 1048, subdivision (b) arguing that the ends of justice and the economy and efficiency of handling this action would be promoted by bifurcation.

“The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5. The court, on its own motion, may make such an order at any time. Where trial of the issue of liability as to all causes of action precedes the trial of other issues or parts thereof, and the decision of the court, or the verdict of the jury upon such issue so tried is in favor of any party on whom liability is sought to be imposed, judgment in favor of such party shall thereupon be entered and no trial of other issues in the action as against such party shall be had unless such judgment shall be reversed upon appeal or otherwise set aside or vacated.” (Code Civ. Proc., § 598.)

“Code of Civil Procedure section 598 was adopted in 1963 as the result of Judicial Council recommendations. Its objective is avoidance of the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff. [Citations.]” (Horton v. Jones (1972) 26 Cal.App.3d 952, 955.)

“The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (Code Civ. Proc., § 1048, subd. (b).)

Defendants argue that on November 1, 2023, plaintiff executed a release and settlement agreement (the “Agreement”) with defendants in connection with an eviction proceeding, wherein plaintiff agreed to release all claims arising from the lease “[e]xcepting only Tenant’s personal injury claim No. 230646427 that is now pending . . .” (Motion, p. 3, ll. 10-13; Weber decl., ¶ 3 & Exh. 1 ¶¶ 2, 3.)

Defendants argue that Claim No. 230646427 was a claim for personal injury arising from mold exposure that had been tendered by plaintiff to defendants’ general liability insurance carrier, and that, following depositions and mediation, it has become apparent that there is a dispute regarding the scope of the release, with plaintiff claiming that she did not release claims for property damage or a slip and fall that occurred on the property.

Defendants request a bench trial on the 19th affirmative defense to be followed by a jury trial of the remaining issues.

“ ‘Contract principles apply when interpreting a release, and “ ‘normally the meaning of contract language, including a release, is a legal question.’ ” [Citation.] “ ‘Where . . . no conflicting parol evidence is introduced concerning the interpretation of the document, “ ‘construction of the instrument is a question of law, . . .” ’ ” [Citation.]” ‘ . . . [Citation.]’ ” [Citation.]” (Huverserian v. Catalina Scuba Luv, Inc. (2010) 184 Cal.App.4th 1462, 1466-1467.)

However, the scope of a release becomes a question of fact when extrinsic evidence bears on the intention of the parties. (see Butler v. Vons Companies, Inc. (2006) 140 Cal.App.4th 943, 949-950.)

The Agreement at issue here is, at best, ambiguous as to the released claim or claims. Extrinsic evidence will certainly be required to determine the scope of the release. Given this, the court does not find that the “convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted” by bifurcation of the 19th affirmative defense.

The motion will be denied.

Judges

Judge Donna D. Geck

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